

agreements to arbitrate are unenforceable.” (*McManus v. CIBC World Markets Corp.* (2003) 109 Cal.App.4th 76, 91.)

Plaintiff argues that the MAA contains a high degree of substantive unconscionability because it contains terms demonstrating a lack of mutuality. “A lack of mutuality exists when an arbitration agreement expansively defines who is to be bound by the agreement on one side, but restrictively defines who is bound by it as to the other side.” (*Cook v. Univ. of So. Cal.* (2024) 102 Cal.App.5th 312, 326.) In *Cook*, the Court noted that the agreement required Cook to arbitrate all claims against USC or any of its related entities but did not require those related entities to arbitrate their claims against Cook. (*Ibid.*) Plaintiff argues that here, as in *Cook*, the MAA “applies to a dispute that the *Company may have against you*, or that *you may have against*: (1) the Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company’s benefits plans or the plan’s sponsors, fiduciaries, administrators, affiliates, or agents; and (4) all successors and assigns of any of them. (Dec.Rodriguez ¶ 8, Ex. “A”). Essentially, Plaintiff argues that the MAA does not encompass a reciprocal obligation.³

The MAA contains some overbreadth because it requires Plaintiff to arbitrate claims against many non-parties but does not require them to arbitrate claims against her. However, the MAA is limited to claims relating to employment making it narrower and factually distinguishable from *Cook*. More importantly, even where there is some substantive unconscionability, some degree of procedural unconscionability is also required. Here, as discussed above, there is no procedural unconscionability. Thus, overall, the MAA is not unconscionable.

9.

CASE #	CASE NAME	HEARING NAME
CVME2602754	IN RE: VERONICA FONCECA	MOTION TO VACATE ORDER AND APPROVE FIRST AMENDED PETITION

Tentative Ruling: GRANTED.

10.

CASE #	CASE NAME	HEARING NAME
CVME2604565	O'DUFFY BROS. VS DUFFY	HEARING ON ANTI-SLAPP MOTION

Tentative Ruling: DENY

Plaintiffs fail to meet their burden under prong one of the anti-SLAPP analyses. Because of this, the untimely opposition is moot, and the court will not consider probability of prevailing under prong 2.

On 2/27/2026, O'Duffy Bros, Inc. and James T. Duffy (“James” and collectively “Plaintiffs”) filed a complaint against Nicholas Duffy (“Nicholas”) and Duffy General Engineering (“Defendants”) asserting the following causes of action: (1) breach of fiduciary duty; (2) breach of duty of loyalty; (3) usurpation of corporate opportunity; (4) fraud (intentional misrepresentation); (5) fraud (concealment); (6) misappropriation of trade secrets; (7)

intentional interference with contract; (8) intentional interference with prospective economic advantage; (9) UCL; (10) unjust enrichment; and (11) accounting.

The complaint states that Nicholas was an officer for O'Duffy Bros, Inc. and while serving as an officer, secretly formed Duffy General Engineering in January 2024. After Duffy General Engineering got its contractor's license, the complaint alleges Nicholas solicited customers away from O'Duffy Bros, Inc. to his own company, Duffy General Engineering.

On 6/5/2026, Defendants filed a cross-complaint ("XC") for (1) breach of fiduciary duty; (2) intentional interference with economic relations; (3) defamation; and (4) accounting against Plaintiffs. Generally, the XC alleges that Plaintiffs intentionally interfered with Defendants' business relations via defamation.

Now, Plaintiffs specially move to strike the second and third causes of action of the XC pursuant to CCP § 425.16 ("Anti-SLAPP motion"), arguing Plaintiff's claim arises from protected activity. Plaintiffs argue the communications to third parties were made in anticipation of and during litigation, as well as to interested parties.

In an untimely opposition, Defendants argue Plaintiffs failed to meet their burden to show the conduct at issue qualifies as protected activity.⁴

In reply, Plaintiffs object to the untimely opposition.

In the first step of the analysis, the moving defendant must identify all allegations of protected activities and demonstrate that the challenged claims arise from those activities. (*Baral v. Schnitt* (2016) 1 Cal.5th 376; *Shahbazian v. City of Rancho Palos Verdes* (2017) 17 Cal.App.5th 823.) In so doing, the court is "not limited to examining the allegations of the complaint alone but rather considers the pleadings and the factual material submitted in connection with the special motion to strike." (*Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 408.)

Second, "[i]f the court finds the defendant has met this threshold burden, it then determines whether the plaintiff has demonstrated a probability of prevailing on the merits of the plaintiff's claim." (*Navellier v. Sletten, supra*, 29 Cal.4th at 88-89.) To meet this second step, the plaintiff must demonstrate: (1) "that the complaint is both legally sufficient" and (2) "supported by a...prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. [Citation.]" (*Id.* at 89.) In analyzing this step, the court considers "the pleadings and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (CCP § 425.16(b).)

"[T]he focus is on determining what 'the defendant's activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.'" (*Park v. Board of Trustees of the California State University* (2017) 2 Cal.5th 1057, 1063.) "[I]n determining whether the challenged cause of action arises from protected conduct, the first prong, the court necessarily looks to the allegations in the operative complaint. This does not preclude a court from examining affidavits in making

the first prong assessment; in fact, the Legislature explicitly permits a court in making the first prong assessment to rely on affidavits. (CCP § 425.16, subd. (b)(2).)

As a preliminary issue, the complaint is largely uncertain as to what specific conduct concerns the basis of the second and third causes of action such that it is clear that the two causes of action are subject of the allegations such that the anti-SLAPP statute would bar the complaint. The second cause of action for intentional interference with economic relations refers generally to “contacting third parties directly and soliciting them to cancel their contracts and business...using O’Duffy Bros., Inc. standing in the contracting community to dissuade and steer away new business...[and] slandering and libeling DGE’s reputation in the contracting community. (XC, ¶¶ 21 and 25.)

“The question is what is pled—not what is proven.” (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 942.) “ ‘If there are no acts alleged, there can be no showing that alleged acts arise from protected activity.’ ” (*Central Valley Hospitalists v. Dignity Health* (2018) 19 Cal.App.5th 203, 218.) If the complaint is vague, it is not clear whether the anti-SLAPP statute applies. (See *Turnbull v. Lucerne Valley Unified School District* (2018) 24 Cal.App.5th 522, 534.) As explained by one court:

It would be inappropriate for us to insert into a pleading claims for relief based on allegations of activities that plaintiffs simply have not identified, even if the parties suggest on appeal how plaintiffs might have intended to frame those claims or attempt to identify the specific conduct or assertions of statements alleged to be false on which plaintiffs intended to base such claims for relief. It is not our role to engage in what would amount to a redrafting of the first amended complaint in order to read that document as alleging conduct that supports a claim that has not in fact been specifically alleged and then assess whether the pleading that we have essentially drafted could survive the anti-SLAPP motion directed at it. The anti-SLAPP statute operates in a very specific way, permitting a court to strike from a complaint only “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue” when the plaintiff cannot establish a probability of prevailing on the claim. (§ 425.16, subd. (b)(1).) The anti-SLAPP statute’s stark remedies come into play to bring an end solely to “meritless” claims filed primarily to chill the defendant’s exercise of his or her First Amendment rights [citation]. Where, as here, *the operative complaint alleges no act on the part of the moving defendants in support of the claim or claims for relief that those defendants seek to strike from that complaint, defendants are not entitled to strike those claims for relief pursuant to the anti-SLAPP statute, although they may have other remedies available to them to address deficiencies in the pleading.*

(*Medical Marijuana, Inc. v. ProjectCBD.com* (2016) 6 Cal.App.5th 602, 621 (emphasis added).) As the actual statements and conduct are not clear in their content or purpose, the court cannot strike the complaint based on Plaintiffs’ surmise of the claims.

The only specifically identified speech is a 5/6/2026 letter mentioned only in the third cause of action. (XC, ¶ 25.) The letter is included with the moving papers, attached as Exhibit A to the declaration of James. Plaintiffs focus on one sentence in the letter stating, “We will be taking action against Duffy General Engineering, Inc...” as support for the

argument that the cause of action is protected speech pursuant to either CCP §425.26(e)(1) or (e)(2), as “any written or oral statement or writing made before a legislative, executive, or judicial proceeds” or “in connection with an issue under consideration or review.”

However, “[a] claim does not arise from constitutionally protected activity simply because it is triggered by such activity or is filed after it occurs. [Citation.] Rather, the focus is on the substance of the lawsuit. ‘[T]he critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech.’” (*World Financial Group, Inc. v. HBW Ins. & Financial Services, Inc.* (2009) 172 Cal.App.4th 1561, 1568.) Importantly, “The trial court should distinguish between (1) speech or petitioning activity that is mere evidence related to liability and (2) liability that is based on speech or petitioning activity.” (*Graffiti Protective Coatings, Inc. v. City of Pico Rivera* (2010) 181 Cal.App.4th 1207, 1214-1215.) Here, it is clear that the letter is mere evidence related to liability – that is, offered as proof of Plaintiffs’ alleged defamation rather than the basis of liability. Plaintiffs fail to meet their burden to establish the letter is protected speech under (e)(2).

Plaintiffs also argue the conduct identified in the second and third causes of action are protected speech under (e)(4). Any conduct in furtherance of the exercise of the constitutional right of petition or free speech in connection with a public issue or an issue of public interest is protected under (e)(4). “Section 425.16 does not define ‘an issue of public interest.’ Nevertheless, the statute requires the issue to include attributes that make it one of public, rather than merely private, interest. [Citation.]” (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 481.) “Further the matter should be something of concern to a substantial number of people.” (*Ibid.*) “Being based on case law, the precise boundaries of a public issue have not been defined.” (*Hailstone v. Martinez* (2008) 169 Cal.App.4th 728, 736.)

“A few guiding principles may be derived from decisional authorities. First, ‘public interest’ does not equate with mere curiosity.... Second, a matter of public interest should be something of concern to a substantial number of people....” (*Thomas v. Quintero* (2005) 126 Cal.App.4th 635, 658.) “Third, there should be some degree of closeness between the challenged statements and the asserted public interest....” (*Ibid.*) “Fourth, the focus of the speaker’s conduct should be the public interest rather than a mere effort ‘to gather ammunition for another round of [private] controversy....’” (*Id.* at 658-659, brackets in original.)

“The ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate.’ [Citation.]” (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1246.) For instance, demonstrations, leafleting, publication of articles on the internet criticizing governmental policy regarding the alleged mistreatment of animals at city-run animal shelters were held to “constitute a classic exercise of the constitutional rights of petition and free speech in connection with a public issue or an issue of public interest within the meaning of section 425.16, subdivision

(e)(4).” (*City of Los Angeles v. Animal Defense League* (2006) 135 Cal.App.4th 606, 620.)

In making this argument, Plaintiffs admit that “James’ communication was directed only to existing contractors, vendors, and business associates who had previously conducted business with O’Duffy Bros.” (Motion, p. 9:10-19.) But such an argument betrays any argument that the conduct should be protected under (e)(4) as it is clearly not a matter of public interest. Plaintiffs make no attempt to even argue that the issue is one of public interest.

For these reasons, Plaintiffs fail to meet their burden under prong one of the anti-SLAPP analyses. Because of this, the untimely opposition is moot, and the court need not consider probability of prevailing under prong 2.